

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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THERESA MCCLENDON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
Det. Jelson Goyco, Det. Peter Nangle
and Det. Ronald Bannister,

Defendants.
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Index No.: 11-CV-3448 (JG) (CLP)

AMENDED COMPLAINT

DEMAND FOR JURY TRIAL

THERESA MCCLENDON, by her attorney, Chidi Eze, Esq., complaining of the City of New York and the individually identified police officers, all of NYPD's 75th Precinct, upon information and belief, alleges as follows:

JURISDICTION

1. This is an action at law to redress the deprivation, under color of statute, ordinance, regulation, custom or usage, by Defendants of the rights, privileges and immunities secured to Plaintiff by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. §1983 [and §1985], and arising under the laws and statutes of the State of New York and the City of New York.

2. Jurisdiction is specifically conferred on the United States District Court by 28 U.S.C. § 1331, this being an action arising under the Constitution and Federal law, and by 28 U.S.C. § 1343(a)(3), this being an action authorized by law to redress the deprivation, under color

of statute, ordinance, regulation, custom or usage, of rights, privileges and immunities secured to Plaintiff by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. §1983.

3. Venue is proper because the acts complained of herein occurred in Brooklyn, City and State of New York, which is within the Eastern District of New York.

PARTIES

4. During all times relevant and material to this Complaint, Plaintiff was, and still is, a citizen of the United States, residing in Brooklyn, City & State of New York.

5. During all times relevant and material to this case, Defendant City of New York was a municipal corporation incorporated under the laws of the State of New York.

6. During all times relevant and material to this case, the defendant Police Officers were employees of Defendant City of New York through its Police Department, employed at the 75th Precinct.

7. During all times relevant and material to this case, the actions of the individual Police Officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of Defendants City of New York and New York Police Department (hereinafter NYPD), and Defendants City of New York is as such responsible for the individual Defendants' actions. Defendant City of New York is further responsible for the actions of the individual Defendants under the principal agent/*respondeat superior* rule.

FACTS COMMON TO ALL CAUSES OF ACTION

8. On June 25, 2010, at approximately 6:30 p.m., plaintiff was walking home from a nearby grocery store, when the defendant police officers attacked her right across the Street from her home of 2324 Pitkin Avenue in Brooklyn New York. Plaintiff was blind-sided by the defendant officers who descended upon her from behind.
9. Upon being ambushed, these all-male officers shoved, kicked and punched plaintiff all over her body. Plaintiff was thrown to the concrete wall near the scene and held her against wall with her face rubbing and scrubbing painfully against the wall and while in that position, her head and face was repeatedly slammed against the wall, and her shoulder was also forced to make bruising contacts with the wall. While in their grip, the officers began to frantically and aggressively searching plaintiff's pockets and all over her body, while others fondled and squeezed her breasts. The officers forcefully squeezed plaintiff's cheeks and jaws to force her mouth wide open, while inflicting severe pain upon plaintiff. While one officer squeezed her mouth, another was squeezing her neck and yet another was busy fondling her breasts and the fourth was digging out her pockets. All this in full view of the public and there were quite a few on-lookers on the street watching the incident.
10. The officers continued to squeeze plaintiff's mouth wide open and in the process called her obscene names and repeatedly said to her 'bitch, where is it, give it up, get it out of your f--king mouth'. The officers choked plaintiff, while bending her head over with their hands behind her neck. The officers slammed plaintiff to the wall repeatedly and continued

to physically and verbally abuse her. Upon finding nothing inside of plaintiff's mouth or person, the officers still maintained these grips just to perversely inflict pain upon plaintiff.

11. Approximately 20 minutes after the assault and battery began, plaintiff was handcuffed from behind and thrown into a waiting police van that had other suspects in it. Plaintiff was taken to the 75th Precinct where she was processed and subjected to another search, this time by a female police officer. No photograph of plaintiff was taken at the Precinct, presumably because of the injuries inflicted upon her by the defendant police officers. Plaintiff was bleeding from her face and shoulders from scrubbing and scraping against the wall, from inside her mouth and other parts of her body.
12. While at the Precinct the officers ignored plaintiff's request for medical attention, instead plaintiff was taken to Kings County Central bookings late that night. Fifteen (15) minutes after arriving at Central Bookings, plaintiff was taken to Elmhurst Hospital in Queens where she received emergency treatment for approximately Eight (8) hours. Upon being discharged from Elmhurst Hospital, plaintiff was brought back to Kings County Central Bookings. At Central Bookings plaintiff was charged with Tampering with evidence and resisting arrest.
13. on June 26, 2010, at approximately 7:30 p.m., plaintiff was arraigned before a judge and the charges against her were dismissed. Upon being released, plaintiff went to Brookdale Hospital to seek further treatments for her injuries, and continued to go there for more treatment.
14. That plaintiff was assaulted, battered and sexually molested by the defendant officers without probably cause. Plaintiff was arrested and imprisoned for approximately 24 hours

even though the defendant Police Officers knew, or should have known based on the facts, that plaintiff did not commit any crime or could not be charged with any offense.

15. Further, plaintiff was deliberately and sadistically brutalized and verbally abused for no legitimate reason. As a direct and proximate result of defendants' actions, plaintiff was deprived of her due process rights, remedies, privileges, and immunities under the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution and the laws of the City and State of New York.
16. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer serious physical and emotional injuries, including but not limited to emotional distress, nightmares, panic attacks, mental anguish, unwarranted severe anger bouts, permanent scarring and severe physical pains in various parts of her body.
17. The illegal and unlawful arrest of plaintiff, plaintiff's wrongful imprisonment particularly in light of the fact that the defendants had full knowledge of, or should have had full knowledge that plaintiff did not commit any crime, were intentional, malicious, reckless and in bad faith.
18. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.
19. In light of the foregoing, plaintiff has been damaged by the actions of the City of New York and its agents, was publicly humiliated, was battered and assaulted in public, had her breast fondled and squeezed in public, was arrested and imprisoned for over 24 hours without probable cause, lost respect and dignity before friends and family, suffered and

continues to suffer severe mental anguish, reputation injuries, psychological and emotional distress, some or all of which may be permanent.

20. The Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD officers. The conduct of the defendant officers complained of herein were beyond the scope of their jurisdiction, without legal authority, and in abuse of their authority. Accordingly, plaintiff has been damaged by the actions of the City of New York and its agents and therefore, seeks compensation as a result.
21. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, and knowingly concealed violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including the defendants in this case, to engage in these unlawful conducts.

AND AS FOR A FIRST CAUSE OF ACTION

22. Plaintiff repeats and re-alleges paragraphs 1 through 21 as if each paragraph is repeated verbatim herein.
23. The defendant police officers arrested and imprisoned Plaintiff without probable cause, without a warrant and with malice and intentional disregard for her constitutional rights. The Defendants, acting under color of State Law, violated Plaintiff's right to be free from unreasonable seizures, secured to her under the Fourth and Fourteenth Amendments to the Constitution, and her right not to be deprived of liberty without due process of law,

secured under the Fifth and Fourteenth Amendments. By denying Plaintiff's Constitutional rights under color of State Law, the Defendants violated 42 U.S.C. §1983. In addition, the defendant officers conspire to deny plaintiff her Constitutional rights secured to her by 42 U.S.C. §1983 [1985], and took several overt steps in furtherance of the conspiracy as set forth above.

24. As a result of the seizure of his person, Plaintiff was denied her freedom and liberty and suffered emotional and mental distress thereof. Plaintiff claims compensatory damages in the amount of \$2,000,000. In addition, because the defendant police officers acted with malice and intentional disregard for her Constitutional rights when they arrested and imprisoned her, Plaintiff seeks \$400,000 in punitive damages.

AND AS FOR A SECOND CAUSE OF ACTION

25. Plaintiff repeats and re-alleges paragraphs 1 through 24 as if each paragraph is repeated verbatim herein.
26. In violation of Article 1 Section 12 of the New York State Constitution, and New York State Common Law, the defendant police officers falsely arrested and imprisoned Plaintiff for approximately 24 hours without probable cause, deprived her of her rights, remedies, privileges, and immunities guaranteed by said law. In addition, the defendant officers conspire to deny plaintiff her Constitutional rights secured to her by Article 1 Section 12 of the New York State Constitution, and took several overt steps in furtherance of the conspiracy as set forth above.

27. Plaintiff was denied her freedom and liberty, and therefore suffered emotional and mental distress as a result. Plaintiff seeks compensatory damages in the amount of \$2,000,000 for the violation of her rights under State and Common Laws and for emotional and mental distress. In addition, because the defendant police officers acted with malice and intentional disregard for her Constitutional rights when they arrested and imprisoned her, Plaintiff seeks \$400,000 in punitive damages.

AND AS FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats and re-alleges paragraphs 1 through 27 as if each paragraph is repeated verbatim herein.
29. Defendant Officers brutally and savagely attacked, assaulted and battered Plaintiff, sexually molested her and perversely applied handcuffs on her in a way that caused serious injuries to her, subjected her to ridicule and inhumane treatment, subjected her to unwarranted body cavity search, repeatedly struck and stamped upon her for no just cause. These actions were carried out maliciously and sadistically for the very purpose of causing harm and not in good faith to maintain or restore order, in violation of Plaintiff's 4th, 5th, 8th, and 14th Amendment rights to be free from inhumane treatment, unreasonable, and unnecessary and wanton use of force. By these actions, the defendant officers conspire to deny plaintiff her Constitutional rights secured to her by 42 U.S.C. §1983 [1985], and took several overt steps in furtherance of the conspiracy as set forth above.
30. As a result of said actions, Plaintiff claims compensatory damages in the amount of \$2,000,000. In addition, because the defendant police officers acted with malice and

intentional disregard for her Constitutional rights, Plaintiff seeks \$400,000 in punitive damages.

AND AS FOR A FOURTH CAUSE OF ACTION

31. Plaintiff repeats and re-alleges paragraphs 1 through 30 as if each paragraph is repeated verbatim herein.
32. The defendants assaulted and battered plaintiff and used unreasonable force to secure plaintiff in violation of New York State common law. Further, the defendant police officers brutally and savagely molested plaintiff sexually, subjected her to ridicule and inhumane treatment, subjected her to unwarranted body cavity search, repeatedly struck and stamped on her for no just cause. Still further, the defendants were negligent in inflicting several and severe injuries upon plaintiff in violation of New York State common law and as such plaintiff seeks compensatory damages in the amount of \$2,000,000 and punitive damages in the amount of \$400,000.

AND AS FOR A FIFTH CAUSE OF ACTION

33. Plaintiff repeats and re-alleges paragraphs 1 through 32 as if each paragraph is repeated verbatim herein.
34. In violation of Article 1 Section 12 of the New York State Constitution and Common Law the Defendants, acting under color of State authority, maliciously prosecuted Plaintiff without probable cause and belief that a crime was and had been committed, without any legal justification, and with malice and intentional disregard for her rights. Plaintiff also brings this action for malicious prosecution under 42 U.S.C. §1983 [1985].

35. Plaintiff claims compensatory damages in the amount of \$2,000,000 for the violation of her State and Federal malicious prosecution protection rights and privileges. In addition, because the Defendants' acted with malice and intentional disregard for plaintiff's State and Federal Constitutional rights, Plaintiff seeks \$400,000 in punitive damages.

AND AS FOR A SIXTH CAUSE OF ACTION

36. Plaintiff repeats and re-alleges paragraphs 1 through 35 as if each paragraph is repeated verbatim herein.
37. The defendant police officers were acting as agents of the City of New York when they carried out the actions complained of herein. The defendant Police Officers' violations of Plaintiff's Constitutional and Federal Law rights as complained of herein were carried out under the unlawful and injurious policies, customs, and practices of the City of New York and its Police Department Therefore, the City of New York is jointly and severally liable with the defendant police officers for the compensatory damages Plaintiff sustained herein.
38. Plaintiff claims compensatory damages in the amount of \$2,000,000 for the violation of these rights, resulting in emotional and mental distress. In addition, because the Defendants acted with malice and intentional disregard for his Constitutional rights, Plaintiff seeks \$400,000 in punitive damages against the individual officers jointly and severally.

WHEREFORE, Plaintiff prays the Court for judgment as follows for each Cause of

Action:

- i. \$2,000,000 in compensatory damages against all the defendants, jointly and severally;
- ii. \$400,000 in punitive damages against the individual defendant police officers, jointly and severally;
- iii. attorney's fees, plus the costs and disbursements of these actions against all Defendants, jointly and severally;
- iv. such other relief as the Court may deem just, proper and equitable.

Dated: Brooklyn, New York
December 2, 2011

By: /s/
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